

		maximum, here, Olenicoff seeks to enforce the Settlement Agreement which contains no such express obligation. Based on the foregoing, the motion is DENIED. The Association's and the Kinstlers' requests for judicial notice are GRANTED as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Evid. Code § 452, subd. (d); <i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) The Association's evidentiary objections are OVERRULED. Counsel for the Association is ordered to give notice of this ruling.
9.	<i>Parkhouse Residences, LLC v. Allies Ornamental Iron Works, Inc.</i> 2026-01585016	OFF CALENDAR based on request for dismissal filed on August 11, 2026
10.	<i>Fernhill Owners Community Association No. 1 vs. Garra</i> 2019-01069232	Before the court is an Order to Show Cause Re: Sale of Dwelling issued by this court on June 22, 2026, regarding the property located at 14671 Van Buren Street, Midway City, California 92655 (Property). The Order to Show Cause was issued pursuant to the application of plaintiff and judgment creditor Fernhill Owners Community Association No. 1 (Judgment Creditor) for an order to sell the interest of defendants and judgment debtors Terese Helene Garra and Terese Helene Garra, as Trustee of the Terese Helene Garra Trust (5/24/19) (collectively, Judgment Debtor) in the Property to satisfy the judgment entered in this case. Judgment Creditor presented evidence showing there is currently no homeowner's exemption or disabled veteran's exemption for the Property. (Speights Decl., ¶¶ 10-12; Exh. G.) Judgment Creditor also presented evidence showing Judgment Debtor resides elsewhere and the Property is a rental property. (Speights Decl., ¶¶ 9, 20; Exh. F.) As such, the Property is not subject to a homestead exemption. (See Code Civ. Proc., § 704.710(c).) Notice of the Order to Show Cause was duly given but no response has been filed with the court. Judgment Debtor

		thus failed to meet her burden to show the Property is, in fact, a homestead. (Code Civ. Proc., § 704.780(a)(1).) Based on the foregoing, Judgment Creditor's application is GRANTED and an order for the sale of the dwelling will issue. (Code Civ. Proc., § 704.780(b).) Counsel for Judgment Creditor is to submit a proposed order consistent with this ruling and Code of Civil Procedure section 704.780, subdivision (b). Counsel for Judgment Creditor shall give notice.
11.	<i>Pinesett vs. Coral Motel</i> 2021-01179977	No Tentative Ruling Will Be Posted
12.	<i>Topacio vs. Osburn</i> 2026-01572780	Before the court is the petition for order authorizing discovery to perpetuate and preserve evidence under Code of Civil Procedure section 2035.010 et seq. filed by Petitioner Darlene Topacio (Petitioner). Petitioner also has filed a supplement to the petition and notice of hearing on the petition. As more fully set forth below, the hearing on the petition is CONTINUED TO THURSDAY, NOVEMBER 19, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for proper service and proof thereof. Code of Civil Procedure section 2035.040 requires Petitioner to serve all adverse parties with copies of the petition and notice of hearing at least 20 days prior to the hearing. That service must be made in the same manner as service of summons. (Code Civ. Proc., § 2035.040, subds. (a) & (b).) Although the petition includes the addresses for many of the respondents (see, e.g., Pet. At p. 2, lines 19-27), there is nothing in the court's records showing any respondent has been served or what efforts have been made to serve respondents. California Rules of Court, rule 3.1300(c) requires a proof of service to be filed at least five court days prior to the hearing. Based on the foregoing, the hearing on the petition is CONTINUED as stated above. At least five court days prior to the continued hearing date, Petitioner is ordered to file proofs of service on all respondents or declarations and other admissible efforts describing the efforts made to serve all respondents and the status of such service. Petitioner's counsel is ordered to give notice of this ruling.